



U.S. Department
of Transportation

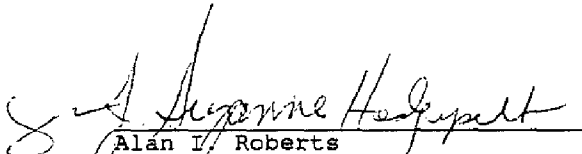
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9851 (EXTENSION)
FOURTH REVISION January 17, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9851 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to November 30, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 3 1994

(DATE)

Dist: FAA

EXEMPTION HOLDER

APPLICATION DATE

Trans World Airlines, Inc.
St. Louis, MO

November 5, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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JAN 17 1991

DOT-E 9851
(FOURTH REVISION)

1. American Airlines, Dallas, Texas, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to transport in commerce a package prescribed herein containing a non-flammable gas subject to the limitations and special requirements specified herein. This exemption authorizes shipment of insulated dewars containing liquid nitrogen to be transported in the cabin of a passenger-carrying aircraft under special conditions, excepted from the parts of 49 CFR shown in paragraph 5 below, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption.

Trans World Airlines, Incorporated, Kansas City, MO - PTE-1.
Northwest Airlines, Incorporated, St. Paul, MN - PTE-2.

2. **BASIS.** This exemption is based on American Airlines' application dated November 30, 1989, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon, and a supplemental letter dated May 17, 1988 and January 4, 1989. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and the public proceeding thereon.

Trans World Airlines, Incorporated's application dated February 8, 1990.
Northwest Airlines, Incorporated's applications dated November 30, 1989 and January 14, 1991.

3. HAZARDOUS MATERIALS (Descriptor and class). Nitrogen, refrigerated liquid, classed as nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Nitrogen, refrigerated liquid.

5. REGULATION AFFECTED. 49 CFR Parts 100 through 199.

6. MODES OF TRANSPORTATION AUTHORIZED. Passenger-carrying aircraft.

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7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a liquid nitrogen cooled insulated container identified in this exemption as an insulated dewar conforming with one of the following:

(1) This dewar must conform to the requirements described in the application of December 1, 1987 and must be overpacked in a plastic insulated ice chest measuring not more than 13" (depth) x 13" (width) x 16.5" (height).

(2) This dewar must conform to the requirements described in the application of May 17, 1988 and with Cryogenic Services, Inc.'s drawing 8845945 dated February 1988 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA).

(3) This dewar must conform to the requirements described in the application of Northwest Airlines' application dated October 20, 1988 and with Minnesota Valley Engineering (MVE) model TA-60 cryobiological storage container.

(4) A dewar conforming to the requirements described in American Airlines' application dated January 3, 1989 and with Minnesota Valley Engineering (MVE) model SC42V or SC43V cryobiological storage container.

(5) This dewar, CryoMed Dry Shipper Model CMD-3200, must conform to the specifications attached to the letter dated January 7, 1991 submitted by the Indiana University Medical Center in support of Northwest Airlines' application of January 14, 1991.

b. Each dewar must be properly secured, in adjoining bulkhead seats when aboard the aircraft, by using a safety belt or other tie-down strong enough to prevent shifting under all normally anticipated flight and ground transport conditions. Passengers not associated with the shipment must not sit in a seat immediately adjacent to the dewars. An attendant escorting the shipment must be seated adjacent to the dewar throughout the flight.

c. The location of the dewars must not restrict access to or use of any required emergency or regular exit, or of any aisle in the passenger compartment.

d. An attendant must escort the shipment and attend to the handling of the dewars on and off the aircraft.

e. The pilot in command must be advised that the dewars are onboard the aircraft.

8. SPECIAL PROVISIONS. Except as otherwise provided for herein, packages prepared as described in this exemption are excepted from the requirements of 49 CFR Parts 100 through 199.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. December 31, 1991.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 17 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FAA.